

Smt. Chhaya Gupta v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 4 January 2018 · Writ-C No. 63028 of 2017 · Writ - C No. 63028 of 2017
 · **Writ allowed; notice and recovery citation quashed; fresh assessment directed.**

HEADNOTE

A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 must itself specify a date for hearing and disclose the basis of the assessed amount. A notice dated 27.03.2017 demanding Rs. 3,97,468 that did neither was not in accordance with law, so the consumer was not afforded the opportunity Clause 6.8(b) requires. Following Ashok Kumar, 2008 (6) ADJ 660 (DB), the notice and the 18.11.2017 recovery citation were quashed, with a direction to issue a fresh provisional assessment, hear objections, and pass a reasoned final assessment.

FACTUAL SUMMARY

Smt. Chhaya Gupta challenged a 27 March 2017 provisional assessment of Rs. 3,97,468 and an 18 November 2017 recovery citation. She said she never received the notice and learnt of it only when recovery issued, so she could not reply. On 2 January 2018 the Division Bench stayed coercive action. She argued the notice, read with Clause 6.8(b)(1) of the U.P. Electricity Supply Code, 2005, fixed no hearing date and gave no basis for the demand.

REUSABLE CONSTRUCTIONS

1. Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 requires the provisional assessment notice itself to fix a date for hearing; a notice that does not is not in accordance with law. ¶ 1
2. A provisional assessment notice that does not disclose the basis of the assessed demand does not afford the consumer the opportunity contemplated by Clause 6.8(b), and the notice and any recovery founded on it are liable to be quashed. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8(b)

provisional-assessment-notice

HOLDING

A provisional assessment notice under Clause 6.8(b) of the U.P. Electricity Supply Code, 2005 must indicate a date for hearing in the notice itself and disclose the basis of the assessed amount. A notice that does neither is not in accordance with law and does not afford the consumer the opportunity provided by Clause 6.8(b). The notice dated 27.03.2017 and recovery citation dated 18.11.2017 are quashed. The licensee must prepare and serve a fresh provisional assessment; the final assessment shall be made after considering the consumer's objections, granting hearing, and giving reasons meeting those objections, in the light of Ashok Kumar, 2008 (6) ADJ 660 (DB) paras 56-64. ¶ 1

FLAG Court referred to Clause 6.8(b)(1) and para 6.8(b); keyed to catalog UP-2005::6.8(b).

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RS. 3,97,468 ASSESSMENT AND WHETHER UNAUTHORIZED USE OR THEFT WAS MADE OUT

Quash was for notice defect; a fresh provisional assessment was directed. ¶ 1

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT NOTICE WAS IN FACT SERVED ON THE PETITIONER

The Court proceeded on the face of the notice (no hearing date; no basis of demand). ¶ 1

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Ashok Kumar v. State of U.P. 2008 (6) ADJ 660 (DB)			1	Referred

SCJ-1709 · Smt. Chhaya Gupta v. State of U.P. · Writ-C No. 63028 of 2017 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.